

Opinion of the Court

Petitioner would have a stronger case if there were any indication that Congress' intent to enact a comprehensive solution for suits against states extended to suits against individual officials. But to the extent Congress contemplated the Act's effect upon officials at all, the evidence points in the opposite direction. As we have already mentioned, the legislative history points toward an intent to leave official immunity outside the scope of the Act. See n. 12, *supra*. And although questions of official immunity did arise in the pre-FSIA period, they were few and far between.¹⁸ The immunity of officials simply was not the particular problem to which Congress was responding when it enacted the FSIA. The FSIA was adopted, rather, to address "a modern world where foreign state enterprises are every day participants in commercial activities," and to assure litigants that decisions regarding claims against states and their enterprises "are made on purely legal grounds." H. R. Rep., at 7. We have been given no reason to believe that Congress saw as a problem, or wanted to eliminate, the State Department's role in determinations regarding individual official immunity.¹⁹

Act to have addressed whether *former* officials are covered, an issue it settled with respect to instrumentalities, see *Dole Food Co. v. Patrickson*, 538 U. S. 468, 478 (2003) ("[I]nstrumentality status [must] be determined at the time suit is filed").

¹⁸ A study that attempted to gather all of the State Department decisions related to sovereign immunity from the adoption of the restrictive theory in 1952 to the enactment of the FSIA reveals only four decisions related to official immunity, and two related to head of state immunity, out of a total of 110 decisions. *Sovereign Immunity Decisions of the Dept. of State, May 1952 to Jan. 1977* (M. Sandler, D. Vagts, & B. Ristau eds.), in *Digest of U. S. Practice in International Law 1977*, pp. 1020, 1080 (hereinafter *Digest*).

¹⁹ The FSIA was introduced in accordance with the recommendation of the State Department. H. R. Rep., at 6. The Department sought and supported the elimination of its role with respect to claims against foreign states and their agencies or instrumentalities. See *Hearings on H. R. 11315 before the Subcommittee on Administrative Law and Governmental Relations of the House of Representatives Committee on the Judiciary*,